

Testing for political influence in Indian Judiciary*

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Abstract

Does the rise of a Hindu-nationalist government influence judicial outcomes in India, particularly concerning the Muslim minority? Leveraging close election outcomes and the quasi-random assignment of judges to cases, this paper assesses whether defendant outcomes are affected by the assignment of defendants to a judge with similar religious identity in the presence of a pro-Hindu government. The findings suggest that the judiciary's decisions remain largely unbiased on religious grounds, despite the Hindu-nationalist ideology of the government. This study contributes to the discourse on the independence of the judiciary in the politically charged context of India.

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1 Introduction

In judicial systems, especially in developed countries like the United States, the influence of political ideologies on judicial decision-making has been well-documented. Research in these contexts reveals that judges' political affiliations significantly impact their judicial behaviors. For instance, studies have indicated that Republican-appointed judges in the U.S. tend to impose more severe sentences for identical crimes compared to their Democratic-appointed counterparts (Keck, 2020; Baum, 2017; Schanzenbach and Tiller, 2007; Schkade et al., 2006; Schanzenbach, 2005). This trend extends to racial and gender biases (Arnold et al., 2018; Knepper, 2018; Anwar et al., 2012) with Republican-appointed judges giving longer sentences to black defendants and shorter ones to female defendants compared to their respective counterparts (Cohen and Yang, 2019). These findings highlight the potential for political leanings to influence judicial outcomes.

However, the dynamics of judicial decision-making in developing countries, particularly with regards to the influence of political ideologies, remain less explored. Ash et al. (2022) is the first study that investigates judicial biases based on judge-defendant identity match along the lines of religion, gender and caste in India. In contrast to the evidence from developed countries, they do not find any significant in-group bias. However, some instances of limited in-group bias were identified in contexts where identity factors are more pronounced. Notably, a small religious in-group bias was observed during Ramadan¹ and in cases where both the judge and defendant share a rare last name. These findings suggest that while in-group bias is not a widespread phenomenon in the Indian judiciary, it can emerge in certain situations where identity becomes more salient. Building upon this foundation, this study aims to explore the potential impact of broader political changes, especially the rise of the Hindu-nationalist National Democratic Alliance (NDA) government, on judicial behavior towards minority groups like Muslims.

India's judiciary, known for its structured judge assignment system, is generally insulated from direct political interference since they don't directly influence appointments, a stark contrast

¹Ramadan is observed by Muslims worldwide as a month of fasting, prayer, reflection, and community.

to systems like the U.S., where political affiliations play a more overt role in judicial appointments. Despite this formal independence, the Indian judiciary might not be entirely immune to the broader political changes, particularly the rise of a Hindu-nationalist NDA government and its increasing influence over otherwise autonomous institutions (Tudor, 2023). This scenario, where a judiciary maintains formal independence yet experiences indirect political influences—not necessarily tied to party ideology—is also observed in Brazil (Lambais and Sigstad, 2023). Just like Ash et al. (2022) finds limited in-group bias when identity becomes salient, I hypothesize that religious identity could become salient in the presence of a strong pro-Hindu government, which might change judges' behaviors towards Muslims in India. Drawing parallels with global trends, such as the increase in xenophobic rhetoric against minorities in the U.S. during Trump's presidency (Newman et al., 2021; Bursztyn et al., 2020), this research seeks to understand whether the judiciary's decisions reflect any in-group bias that aligns with the NDA government's rhetoric.

I will study this by focusing on power shifts between the NDA affiliated parties (henceforth referred to as either NDA or NDA parties) and the United Progressive Alliance (UPA) or other independent parties (henceforth referred to as non-NDA parties or non-NDA) in four states, namely Uttar Pradesh, Madhya Pradesh, Rajasthan, and Karnataka. NDA is an Indian political alliance of parties leaning right-of-center, led by the Hindu-nationalist Bhartiya Janta Party (BJP). At the same time, UPA is a left-leaning political alliance in India led by the Indian National Congress (INC). Since 2014, the NDA's rise to central power under Prime Minister Narendra Modi has been associated with increased concerns about the independence of various state institutions, including the judiciary, Reserve Bank of India, and civil services, hinting at a greater government influence (Tudor, 2023; Yadav, 2023; Varshney, 2022; Khaitan, 2020). Additionally, there has been an increase in discrimination and violence against Muslims (Werleman, 2021), along with legislative changes such as the 2019 Citizenship Amendment Act, which have raised concerns about religious freedom and minority rights². These factors lead to the hypothesis that the current political climate, dominated by Hindu-nationalist sentiment, could influence judicial decisions, potentially

²<https://www.uscirf.gov/resources/factsheet-citizenship-amendment-act-india>

leading to an in-group bias towards non-Muslims in the legal system.

Data for this study comes from Indian judicial records (2010-2018), compiled by [Ash et al. \(2022\)](#), and state-election data (2007-2019) from the Election Commission of India. The judicial data focuses on criminal cases in the lower judiciary, treating each case handled by a judge in a court within a district as a distinct unit of observation. The dataset includes judge and case details, with specific attention to the religious identities of judges and defendants. The primary focus of this analysis is on acquittal rates, while non-conviction rates and decision timings to arrive at the case outcomes serve as secondary measures. I also focus separately on cases where the outcomes are clearly defined as favorable or unfavorable for the defendant (henceforth referred to as ‘cases with unambiguous outcomes’), explained in greater detail in subsection 3.1. The state election data consists of information on election results and candidate characteristics at the constituency level within each district. The final dataset of 3.8 million observations was compiled by mapping district-level electoral outcomes to court-district-level judicial outcomes. This process involved aggregating constituency-level election data to the district level, discussed in detail in subsection 2.3, and making manual adjustments to reconcile the different naming conventions across the two datasets.

I follow the empirical approaches of [Clots-Figueras \(2011\)](#) and [Ash et al. \(2022\)](#) to examine the effect of judge-defendant religious identity match and electoral presence of NDA on case outcomes in India, leveraging the quasi-random assignment of judges to cases in district courts. However, the areas represented by NDA parties may differ from those represented by non-NDA parties along unobservable characteristics. To address this issue, I extend a regression discontinuity design based on the outcome of close elections between NDA and non-NDA parties, leveraging the fact that within 5 % points of victory margin, constituencies are likely to be comparable along most dimensions. In other words, winners in such elections are determined quasi-randomly.

The empirical results of this study indicate that judges in India do not exhibit a clear preference for their religious group, even after considering the influence of the NDA party. Specifically,

in cases with unambiguous outcomes, in which it might be expected that judges would exhibit stronger biases, the data shows only a minor in-group bias among non-Muslim judges. However, this bias decreases in regions with stronger NDA presence. Furthermore, post-2014, with the NDA government led by Modi in power, the expected increase in judicial bias towards non-Muslim defendants in NDA-stronghold regions is not observed. Instead, there is a decrease in acquittal rates for non-Muslim defendants under non-Muslim judges. However this result does not stay robust to alternative specifications and definition of close elections. Overall, the findings suggest that the NDA's ideology and electoral strength do not significantly affect judicial decisions in cases involving matched religious identity, even during Modi's tenure.

This paper contributes to a few different strands of literature: First, this paper contributes to a vast literature on biased decision-making in the legal system ([Arnold et al., 2022](#); [Frandsen et al., 2019](#); [Shayo and Zussman, 2011](#)). While the study by [Ash et al. \(2022\)](#) has examined in-group bias in Indian district courts, this paper takes a closer look at the potential influence of the pro-Hindu ideology of NDA parties on behavior of judges towards defendants who share their religious identity. Second, this study adds to the emerging literature on courts in India and sheds light on how political influence can affect justice delivery ([Poblete-Cazenave, 2023](#); [Aney et al., 2021](#)). Finally, this paper adds to the literature studying minority discrimination along the lines of religion. There are many studies documenting discrimination based on gender, race, caste and color ([Goncalves and Mello, 2021](#); [Agan and Starr, 2018](#); [Thorat and Neuman, 2012](#)) but very few based on religious minorities.

The remainder of the paper is organized as follows. Section 2 discusses the institutional background. Section 3 presents the data and main outcome variables. Section 4 explains the empirical strategy, and Section 5 presents the results of the core analysis and a series of robustness tests. Section 6 concludes.

2 Institutional Background

2.1 Religion in India

India, with its rich tapestry of religions, cultures, and traditions, presents a complex social landscape where religion significantly influences societal dynamics. While Hinduism is the dominant religion, Muslims are the largest religious minority in India accounting for 14.2 % of the total population as per the 2011 census . The Sachar Committee Report, published in 2006, highlighted the economic, social, and educational status of Muslims in India and noted that they faced significant disadvantages in terms of employment, education, and access to basic amenities ³. Unlike Scheduled Castes and Tribes, who benefit from affirmative action policies due to historical social and economic marginalization, Muslims have not been the recipients of similar protective measures.

In the political arena, allegations of bias against Muslims (favouring non-Muslims) have surfaced against several political entities, including the BJP, the leading party in the NDA government ⁴. Accusations of using communal rhetoric to polarize voters along religious lines has further marginalized Muslims in India (Ali et al., 2021). Prime Minister Narendra Modi’s national government has taken various legislative actions, such as the revocation of Jammu and Kashmir’s special status and the enforcement of cow slaughter laws, that are perceived as measures contributing to the disenfranchisement of Muslims while enabling Hindu nationalism. Additionally, anti-conversion laws in some NDA-governed states have been criticized for disproportionately affecting interfaith marriages involving Muslim men ⁵. These developments highlight potential conflicts with India’s commitments to preventing discrimination and ensuring equal legal protection for all citizens, including religious minorities.

This context of alleged political discrimination against Muslims motivates my exploration of

³<https://www.minorityaffairs.gov.in/WriteReadData/RTF1984/7830578798.pdf>

⁴<https://www.cfr.org/background/india-muslims-marginalized-population-bjp-modi#chapter-title-0-6>

⁵<https://www.hrw.org/news/2021/02/19/india-government-policies-actions-target-minorities>

the impact of a Hindu-majority NDA party on judicial outcomes and bias towards non-Muslims, in the context of the criminal justice system of India.

2.2 India's Court System

India's judicial system, structured hierarchically and following the common law model, consists of the Supreme Court at the apex, followed by 25 state High Courts and 672 district courts. Below the district courts, there are approximately 7,000 subordinate courts, collectively forming India's lower judiciary ⁶. These courts are the primary venue for the vast majority of criminal cases in India. Judges in these courts are typically appointed after at least seven years of legal practice, through a process involving a written exam and an interview by a panel of higher-court judges. Appointed by the governor in consultation with the state high court's chief justice, these judges enjoy well-protected tenures, removable only by the governor with the concurrence of the high court ⁷.

In criminal cases, the assignment of judges follows an exogenous process, ensuring impartiality and limiting discretion. Upon the filing of a First Information Report (FIR) at a local police station, the case is assigned to a district courthouse within the station's territorial jurisdiction. The assignment of cases to judges is largely determined by the number of available judges and the specific courtroom linked to each police station for different charges, with the same courtroom consistently handling cases like murder charges reported at a particular police station ⁸. This system aims to prevent 'judge shopping' or 'forum shopping', where litigants might seek favorable judges. In the Indian context, plea bargaining is not a major concern, as it is used in less than 0.5% of all criminal cases.

India's judicial system, while designed to function independently, has faced challenges in recent years concerning the preservation of its autonomy. Under the current government, led by

⁶https://en.wikipedia.org/wiki/Judiciary_of_India#The_Constitution_and_the_Judiciary

⁷https://en.wikipedia.org/wiki/District_courts_of_India

⁸<https://blog.ipleaders.in/jurisdiction-criminal-courts-india/>

Modi, there have been concerns of an increasing political influence over judicial processes (Tudor, 2023). This has raised concerns about the judiciary's ability to uphold its role as an impartial arbiter, especially in the context of cases involving minority groups like Muslims. The judiciary operates under a structured judge assignment system, which is designed to shield it from direct political influences. However, the intensifying Hindu-nationalist sentiment may have an indirect impact on judicial rulings. These factors could affect outcomes for non-Muslim defendants, especially in cases overseen by Non-Muslim judges. I aim to analyze if rising Hindu-nationalist sentiment can induce bias towards non-Muslims, within India's criminal justice framework.

2.3 India's Election Process

Elections in India are conducted by an independent body called the Election Commission of India (ECI). State level elections are held every five years at the constituency level, whereas the lowest administrative division at which I observe judicial outcomes are districts. The number of districts vary significantly across states, however each district on average comprises six constituencies. Therefore, in order to analyze heterogeneous effects generated by electoral competition, some form of aggregation of constituency level election results up to districts is necessary.

The key element of this aggregation is the calculation of the margin of victory for the NDA party across all constituencies within a district. This metric serves as a proxy for the electoral strength or presence of NDA party in that district. To compute this, the win margin is calculated as the difference in vote share received by the NDA party and the non-NDA party. Therefore the winning margin takes a negative value when the NDA party loses and a positive value when it wins. For example, the win margin for NDA in a constituency is -4% if the vote share of NDA party is 45% and that of the non-NDA party is 49%. After calculating these individual constituency margins, they are aggregated at the district level by computing the mean of these margins across all constituencies within each district. This provides a single, representative figure for each district, encapsulating the overall electoral performance of the NDA party in that area. Similarly, other key

electoral metrics such as close elections, vote shares of NDA and non-NDA parties within each district are also aggregated.

3 Data

The scope of this study is confined to four states: Uttar Pradesh, Madhya Pradesh, Rajasthan, and Karnataka. These states were selected primarily because they represent a diverse cross-section of India's socio-political landscape since they have a sizable Muslim population and have experienced considerable political shifts over time, particularly with changes in the ruling parties. I combine electoral outcomes with judicial data in these states at the district level, to form a comprehensive dataset to carry out the analysis.

3.1 Judicial Data

I utilize a comprehensive dataset of judicial records from 2010-2018 ⁹, compiled by [Ash et al. \(2022\)](#), which covers India's lower judiciary. This dataset includes judge-level information such as names, positions, and appointment durations in each court, as well as detailed case data like filing, registration, hearing, and decision dates. Key variables also include binary variables indicating the religious and gender identity of judges and defendants, categorizing them as Muslim or Non-Muslim, and male or female, and final case outcomes. Figure A1 maps the geographic distribution of the sample of courts across the four states at the district level.

Following [Ash et al. \(2022\)](#), my focus is primarily on criminal cases filed under the Indian Penal Code or the Code of Criminal Procedure, as compared to civil cases. This choice is informed by two main reasons: ease of religious identity match between judge and defendant in the presence of a single litigant and straightforward classification of outcomes as favorable or unfavorable for the defendant.

⁹<https://www.devdatalab.org/judicial-data>

The defendant's outcome is defined as a case-level indicator variable that takes the value one if the outcome is desirable for the defendant and zero otherwise. My primary specification uses an indicator for defendant acquittal while a secondary specification uses an indicator for any outcome other than conviction, similar to Ash et al. (2022). I use this measure to test for robustness. Another aspect of interest, given the backdrop of judicial delays in India ¹⁰, is the timeline for reaching decisions. I focus on cases decided within six months of the filing date, similar to Ash et al. (2022), accounting for about 31% of cases in the dataset.

One main challenge in the dataset arises from the ambiguity present in instances where final outcomes are merely mentioned as 'disposed' without a clear indication of being favorable or unfavorable for the defendant. To address this, I categorize such outcomes as neither acquittals nor convictions, following Ash et al. (2022). The positive outcome variable takes the value of 0 when Y = acquitted, and the value of 1 when Y = not convicted (Figure A2). 18% of case dispositions are clearly designated as favorable or unfavorable, defined as unambiguous outcomes, with the remainder ambiguous. To ensure robustness, I further restrict the analysis to cases with unambiguous outcomes for assessing potential judicial biases. Judges, when faced with clear-cut outcomes, might exercise discretion in favor of defendants sharing their religious identity. If outcomes are clearly good or bad for the defendant, it becomes easier to identify whether the judge's decision was influenced by external factors like a strong political presence. The hypothesis is that in cases with unambiguous outcomes, where judicial discretion is more pronounced, strong political presence of the NDA and their Hindu-nationalist sentiment, would intensify judicial bias towards non-Muslims.

The dataset initially contains over 3.8 million observations, each representing an individual case. To transition from case-level to judge-level analysis, I collapse the case-level data for each judge, thereby reducing the total number of observations to 13,893, which corresponds to the number of unique judges in the dataset. This aggregation process involves calculating mean values for key variables (such as tenure length, conviction rate) for each judge, weighted by the number

¹⁰<https://vidhilegalpolicy.in/research/differentiated-case-management-for-the-indian-judiciary/>

of cases they presided over. Table 1 shows the descriptive statistics of judges and case outcomes in my final sample. About 6.3% of them are Muslim. On average, Muslim judges have similar acquittal and rapid decision rates to Non-Muslim judges with some significant difference in the conviction rates.

Table 2 shows descriptive statistics by crime type and acquittal rate based on the religious identity of the defendants. While these statistics provide an overview, it is important to note that they don't indicate bias in the judicial process since the information about the actual guilt or criminal activities of the defendants is lacking. Column (1) indicates the share of Muslims charged in each crime category while Column (2) compares the proportion of Muslim defendants charged in each category with their overall population share in India. Values above 1 indicate an over-representation of Muslim defendants in that crime category compared to their population share, while values below 1 indicate under-representation. This means that Muslims are charged 18%¹¹ more for violent theft/dacoity, 4% more for marriage-related offenses and 22% more for crimes which disturb public health and safety. However, they are 9% less likely to be charged with murder. The overall difference in acquittal rates between Muslims and non-Muslims in Column (3) is statistically significant, with Muslims facing a lower acquittal rate than non-Muslims¹².

3.2 Election Data

I use data from the Election Commission of India (ECI), accessible from the Lok Dhaba initiative by TCPD Ashoka¹³, specifically focusing on National Democratic Alliance (NDA) and non-NDA constituencies from 2007-2019. This dataset includes information on results, candidate characteristics such as names, caste, wealth, and criminal history, across three electoral cycles in the four states of interest. In particular, the elections in Madhya Pradesh, Karnataka, and Rajasthan oc-

¹¹This number comes from Column (2), coefficient of Violent Theft/Dacoity crime category: $(1.181-1)*100 = 18\%$

¹²Table A1 shows no overall significant difference in the conviction rates of Muslims and non-Muslim defendants, despite Muslim judges having a slightly higher conviction rate than Non-Muslim judges, as discussed in Table 1.

¹³<https://tcpd.ashoka.edu.in/lok-dhaba/>

curred in 2008, 2013, and 2018, while in Uttar Pradesh, they were held in 2007, 2012, and 2017. This dataset provides insights into the shifts in political power between the United Progressive Alliance (UPA), NDA, and other parties, as visually represented in Figure A2. I exploit variation in power changes across districts within these states.

A crucial part of the analysis involved aggregating this constituency-level data to the district level as detailed in subsection 2.3. However, about 15% of constituencies lacked district information, leading me to undertake a web-based research which is detailed in Appendix subsection 7.1. Additionally, the dynamic nature of constituency boundaries, which can change post-census causing them to span multiple districts, posed another challenge. A thorough manual review of the latest 2011 census data confirmed that there were no delimitation changes in the constituencies of interest, ensuring the accuracy of the aggregation process.

The categorization of 802 unique political parties, with their varying allegiances to NDA and UPA in different election years, required the analysis of their official political propagandas. I identified the ideological leanings of these parties using targeted keywords such as ‘Hindutva’, ‘RSS supporter’, ‘social democracy’, categorizing them accordingly. Ultimately, 3% of the parties were categorized as NDA, 1.7% as UPA, and the rest as Others. Table 3 presents summary statistics of electoral data. There are on average 7 constituency-level elections per district during an electoral cycle. The NDA, representing only 3% of all parties, has an average win share of 0.44, indicating that nearly half of the elections resulted in NDA victory. This suggests a substantial influence on the political landscape, underlining their status as a major party alliance within the four states considered in this study.

The final phase of data preparation involved mapping these aggregated district level election results to court-district-level judicial outcomes. This process was mostly straightforward, but approximately 3500 observations required manual intervention due to variations in district naming conventions across the two datasets¹⁴. This was helpful in compiling the final dataset consisting of

¹⁴These discrepancies often arose from the use of directional qualifiers (such as ‘east’, ‘west’, ‘north’, or ‘south’) or specific descriptors (like roman numerals I or II) in the electoral data, which were not reflected in the judicial

approximately 3.8 million observations.

4 Empirical Methodology

4.1 Instrumental Variable Approach

The objective of this study is to estimate whether defendants experience different outcomes depending on the religious identity of the judge presiding over their case under the influence of Hindu-nationalist sentiment of the NDA government. To estimate a causal effect of judge identity, I effectively control for any factors other than defendant identity and NDA government's presence that could affect the case outcome. Judge assignment in district courts is as good as random given rules that give defendants and prosecutors virtually no control over which judge oversees the case, as detailed in Section 2.2. Leveraging this quasi-random assignment of judges to cases ensures that judge assignment in district courts, conditioned on court-time (month and year) and charge fixed effects, is essentially random. Balance tests conducted by (Ash et al., 2022) show no significant tendency for Muslim judges to adjudicate cases involving Muslim defendants more than non-Muslim judges, supporting the validity of this study's assumptions. Following the methodological approach of (Ash et al., 2022) and Clots-Figueras (2011), I examine the impact of matched identity and political power on case outcomes in India. I model outcome $Y_{i,s,c,d,t}$ (e.g. 1=acquitted) for case i with charge s , filed in court c in district d at time t as:

dataset. In some cases, electoral data divided districts into sub-regions or administrative divisions (labeled as 'rural' and 'urban'), while the judicial data recognized them as singular districts. I identified and reconciled these variations for accurate mapping.

$$\begin{aligned}
Y_{i,s,c,d,t} = & \beta_1 judgeNM_{i,s,c,d,t} + \beta_2 defNM_{i,s,c,d,t} + \beta_3 ShNDAw_{d,t} \\
& + \beta_4 judgeNM_{i,s,c,d,t} \times defNM_{i,s,c,d,t} \\
& + \beta_5 judgeNM_{i,s,c,d,t} \times ShNDAw_{d,t} \\
& + \beta_6 defNM_{i,s,c,d,t} \times ShNDAw_{d,t} \\
& + \beta_7 judgeNM_{i,s,c,d,t} \times defNM_{i,s,c,d,t} \times ShNDAw_{d,t} \\
& + \phi_{c,d,t} + \zeta_s + \delta\chi_{i,s,c,d,t} + \epsilon_{i,s,c,d,t}
\end{aligned} \tag{1}$$

where *judgeNM* is a binary variable that indicates whether a judge is non-Muslim. Similarly, *defNM* indicates the defendant's religious identity. *ShNDAw* represents the share of elections won by NDA party in district d and election year t¹⁵, defined as :

$$ShNDAw_{d,t} = \frac{NDAw_{d,t}}{Total\ Elections_{d,t}}$$

where *NDAw* is the number of constituency level elections won by NDA party in district d and electoral cycle t, scaled by total number of elections in the district. $\phi_{c,d,t}$ is a court-district-month or court-district-year fixed effect, and ζ_s is an act and section fixed effect¹⁶, ensuring that comparisons are confined to defendants accused of similar offenses and within the same court and district during the same period. The court-district-month fixed effects are more granular, capturing more immediate or short-term variations and influences within each month in each court-district combination. It accounts for finer variations within a shorter time frame, which could include specific events, local policy changes, or other factors unique to that month. In contrast, court-district-year

¹⁵On average, the NDA party wins about 44% of the constituency-level elections in a given district and election year.

¹⁶In reference to criminal cases, an 'Act' refers to the entire body of legislation that defines and prescribes punishment for various offenses. For example, the Indian Penal Code (IPC) is an Act that outlines different criminal offenses and their respective penalties. A 'Section' within the IPC specifically details individual offenses or legal provisions. Each section addresses a particular crime, defining what constitutes that crime and the punishment associated with it. For instance, Section 302 of the IPC specifically deals with the punishment for murder.

fixed effects control for variations over an entire year in each court-district combination. This allows for a broader and potentially larger dataset, but it also averages out the effects and variations that could be more pronounced on a monthly basis. $\chi_{i,s,c,d,t}$ includes controls for defendant gender, judge gender, an interaction term of judge religion and defendant gender¹⁷ along with district-level covariates¹⁸. Finally I cluster standard errors at the judge-district level since judge assignment is the level of randomization for the cases and outcome of close elections is a source of quasi-random variation at the district level.

There are four causal effects of interest. β_1 describes the causal effect on a Muslim defendant of having a Non-Muslim judge assigned to the case rather than a Muslim judge. $\beta_1 + \beta_4$ describes the causal effect on a Non-Muslim defendant of having a Non-Muslim judge assigned to the case. The difference between these effects (or β_4) is the own-religious bias for non-Muslim defendants with non-Muslim judges, or non-Muslim in-group bias. It measures whether individuals get more favorable outcomes when the judge shares their religious background. β_3 describes how the share of elections won by the NDA party in a district impacts case outcomes. Finally, β_7 captures the interaction between the religious identities of the judge and defendant as well as the share of elections won by NDA. It aims to reveal if the non-Muslim in-group bias in judicial decisions varies with the political presence or electoral strength of the NDA party and their Hindu-nationalist sentiment in the district.

However, estimating the causal impact of the share of elections won by NDA, through this framework involves a particular methodological challenge. A key concern is that regions represented by NDA might inherently differ from those represented by other parties. These differences, particularly in unobservable factors, could lead to biased estimates due to potential endogeneity. To address the identification issue, I adopt the framework of [Clots-Figueras \(2011\)](#) and use district-level variation in elections won by NDA, arising from the outcome of close elections. I use a fixed

¹⁷I follow [Ash et al. \(2022\)](#) and include gender controls to ensure that the findings reflect the impact of judge and defendant religious identity, and political influence, without being confounded by gender biases.

¹⁸The covariates included are: district share of male winners and district share of constituencies reserved for SC/ST candidates

effect instrumental variable approach where the fraction of elections won by NDA is instrumented with the fraction of close elections won by them. The rationale for this strategy is: when the difference in vote-share between the two candidates is arbitrarily small, the election results can be determined by exogenous factors such as unanticipated changes in voter turnout and behaviour and hence, such election outcomes can be deemed as quasi-exogenous (Lee, 2008). Therefore, in the first stage of the regression, I focus on the outcomes of close elections, following the methodology of Clots-Figueras (2011). The close election outcomes are then incorporated into the second stage of the regression, which aligns with the approach adopted from Ash et al. (2022). The regression framework is the following:

First Stage Equation:

$$ShNDAw_{d,t} = \alpha_d + \delta_t + \pi ShNDAclw_{d,t} + \gamma District_cl_{d,t} + \mathbf{X}_{d,t}\gamma + \theta_{d,t}$$

The instrument $ShNDAclw$ is defined as:

$$ShNDAclw_{d,t} = \frac{NDAclw_{d,t}}{Totalcl_{d,t}}$$

where $NDAclw$ is the number of close elections won by NDA parties' in district d and electoral cycle t and $Totalcl$ is the total number of close elections contested by them ¹⁹.

¹⁹On average, the NDA party wins about 36% of the constituency-level close elections, at the 5% win margin, in a given district and election year.

Second Stage Equation:

$$\begin{aligned}
Y_{i,s,c,d,t} = & \beta_1 judgeNM_{i,s,c,d,t} + \beta_2 defNM_{i,s,c,d,t} + \beta_3 Sh\hat{NDA}w_{d,t} \\
& + \beta_4 judgeNM_{i,s,c,d,t} \times defNM_{i,s,c,d,t} \\
& + \beta_5 judgeNM_{i,s,c,d,t} \times Sh\hat{NDA}w_{d,t} \\
& + \beta_6 defNM_{i,s,c,d,t} \times Sh\hat{NDA}w_{d,t} \\
& + \beta_7 judgeNM_{i,s,c,d,t} \times defNM_{i,s,c,d,t} \times Sh\hat{NDA}w_{d,t} + \gamma District_cl_{d,t} \\
& + \phi_{c,d,t} + \zeta_s + \delta \chi_{i,s,c,d,t} + \epsilon_{i,s,c,d,t}
\end{aligned} \tag{2}$$

Note that while the outcome of close elections is arguably quasi- random, the occurrences of close elections involving NDA parties' may not be. For instance, it may depend on the number of NDA parties' candidates in the district which can be correlated with voter preferences. To solve this issue, I control for the total number of close elections in the district in both first and second stage of instrumental variable framework. Here, *District_cl* represents the total number of close elections between NDA and non-NDA party in a district. In this paper, an election is defined 'close' if the difference in the margin of victory between NDA and a non-NDA party is less than 5% of the total votes cast in the election.²⁰ As a robustness check, I use an alternative close election threshold of 3.5%.

4.2 Evidence on validity of the instrument

To establish the validity of the instrumental variable framework, I perform two standard tests as suggested by Imbens and Lemieux (2008). The first is the McCrary (2008) density test to examine

²⁰Win margin is defined as following:

$$WM_{c,y} = \begin{cases} WMVS_{c,y} - RNVS_{c,y} & \text{if NDA party alliance wins election} \\ RMVS_{c,y} - WNVS_{c,y} & \text{if NDA party alliance loses election} \end{cases} \tag{3}$$

where *WMVS* is vote share of winning NDA party and *RNVS* is vote share received by losing non-NDA party. Similarly, *RMVS* is vote share of runner-up NDA party and *WNVS* is vote share received by winning non-NDA party

for a discontinuity in the running variable - WM (win margin of NDA party) - at the cutoff point 0. This tests for whether NDA parties' disproportionately win close elections. For instance, if NDA parties' can somehow manipulate the election results, then there would be a larger share of NDA wins compared to non-NDA parties' wins in the neighbourhood of the cutoff and hence, we would find evidence of selective sorting. The results, displayed in Figure 1 and Figure 2, show no evidence of threshold discontinuity or selective sorting among NDA party candidates, with the McCrary test yielding small and statistically insignificant estimates.

Secondly, I analyze the continuity of predetermined constituency-level characteristics around the cutoff. The results are presented in Figure 3. The dots in the scatter plot depict the averages over each successive 0.5 percent interval of the margin of victory. The curves are local linear regressions fit separately for positive and negative margins of victory using a triangular kernel and the optimal bandwidth calculator suggested by [Imbens and Kalyanaraman \(2012\)](#), with 95 percent confidence intervals. I am unable to visually discern any discontinuity at the running variable threshold for any of the ten constituency-level covariates, and the confidence intervals overlap, reinforcing the balance on observables.

Collectively, all three figures suggest that parties' selection into winning or losing status is unlikely in constituency level elections, thus validating the assumptions of my IV framework.

5 Results

5.1 First stage

I test whether the instrument is a good predictor of the endogenous variable in the first stage of the IV framework.

Table 4 presents the first stage regression coefficients at the bottom. Keeping the total close elections contested by NDA parties and total elections held in the district constant, one additional

close election win by NDA party should result in $\beta \times \frac{TotalElections}{TotalCloseElections}$ wins for them in the district²¹. From Table 3, the average number of total elections in a district are 7 and NDA party on an average contest approximately 1.53 close elections²². First stage coefficient of Column (2) in Table 4 shows that $\beta = 0.2656$ ²³. This implies that one additional close election win for NDA in the district generates 1.2 ($\beta \times \frac{TotalElections}{TotalCloseElections} = 0.266 \times \frac{7.29}{1.53}$) or approximately, one additional electoral win for NDA in the district. This means that the share of close elections won by NDA affects the final outcome solely through its impact on the share of total elections won by NDA in the district.

I also provide a graphical illustration to explain the first stage relationship. In Figure 4, I plot the share of elections won by NDA party against the vote margin between NDA and non-NDA parties in each district. The figure shows a sharp jump in the share of elections won by NDA in a district at the threshold of 0. This implies that NDA party winning a close election leads to a significant and discontinuous rise in the share of elections won by them in a district .

5.2 Baseline results

Based on Equation (2), I report the estimates of the coefficients on $judgeNM$, $judgeNM \times defNM$, $Sh\hat{NDAw}$ and $judgeNM \times defNM \times Sh\hat{NDAw}$ in Rows (1) to (4) of Table 4 to Table 10. The coefficient on $judgeNM$ captures the impact on a Muslim defendant of having a non-Muslim judge instead of a Muslim judge; coefficient on $judgeNM \times defNM$ captures the presence of in-group bias in favour of non-Muslims; the coefficient on $Sh\hat{NDAw}$ reflects the relationship between the share of elections won by the NDA party and acquittal rates; and the coefficient on $judgeNM \times defNM \times Sh\hat{NDAw}$ reflects whether non-Muslim in-group bias varies according to electoral strength of the NDA.

²¹This comes from total differentiation of the first stage equation where $\frac{NDAwin}{TotalElections} = \alpha + \beta \frac{NDACloseElection}{TotalCloseElections}$, keeping Total Elections and Total Close Elections constant.

²²Total Close Elections = Total Elections $\times$ Share of close elections ($7.29 \times 0.21 = 1.53$, as per Table 3)

²³The value of β in Column (2) is chosen because it includes both controls and Court-district-month fixed effects. Similar results are obtained by using the value reported in Column (4)

Table 4 presents the baseline results for acquittal rates. Columns (1) and (2) show results using court-district-month fixed effects, while Columns (3) and (4) use court-district-year fixed effects. Columns (2) and (4) are the preferred specifications because they have all the required controls and fixed effects. According to the preferred specifications, the estimates for $judgeNM$ and $judgeNM \times defNM$ suggest no significant effect of judge religion on the acquittal rate of defendants, similar to the findings of [Ash et al. \(2022\)](#). The hypothesis that districts with a higher electoral presence of the NDA, known for its Hindu-nationalist sentiment, might exhibit increased in-group bias favoring non-Muslims is not supported by the findings of this study. The analysis, specifically focusing on coefficients on $judgeNM \times defNM \times Sh\hat{NDA}_w$ in preferred specifications, reveal statistically insignificant estimates. The data shows no clear evidence that increased NDA presence in a district leads to stronger judicial bias against Muslims.

In Table 5, which specifically addresses cases with unambiguous outcomes, where case resolutions are clearly marked as favorable or unfavorable for the defendant, the results suggest a slight in-group bias where non-Muslim judges are slightly more likely to acquit non-Muslim defendants by about 0.13 percentage points, as seen in Column (2). However, this result does not appear significantly in the other preferred specification in Column (4) ²⁴. The small sample size here, contributes to larger standard errors which makes the analysis less powered. Contrary to the hypothesis that there will be greater judicial discretion in cases that have unambiguous outcomes, the negative coefficient for $judgeNM \times defNM \times Sh\hat{NDA}_w$ shows that non-Muslim judges in regions with a stronger NDA presence do not exhibit increased bias towards non-Muslim defendants. Specifically, a one-percentage-point increase in NDA vote share leads to a 0.25 (or 0.2) percentage point decrease in the likelihood of acquittal for non-Muslim defendants by non-Muslim judges (as per Column (2) and Column (4)). This counter-intuitive finding suggests that despite the clarity of outcomes offering more room for potential bias, the presence of the NDA does not

²⁴The monthly fixed effects are more granular, potentially capturing more specific influences on case outcomes, while the annual fixed effects provide a broader, less detailed view, which might mask some of the more nuanced variations that can affect judicial decisions. This difference in temporal specificity could be one of the reasons behind the variation in significance across the preferred specifications.

amplify, but rather diminishes, the in-group bias towards non-Muslims.

It is also worth noting that the Modi-led NDA government came to power at the national level in India in 2014. This period has been marked by concerns over Muslim minority rights as well as erosion of institutional autonomy. To evaluate the potential impact of the government's rhetoric and its influence on judicial processes, the analysis is restricted to cases from 2014 onwards. The results, as shown in Row (1) of Table 6, indicate a statistically significant decrease in acquittal rates for Muslim defendants by approximately 0.2 percentage points under non-Muslim judges in the post-2014 era. Column (2) of Table 6 shows an in-group bias of approximately 0.1 percentage points post-2014. This means that when non-Muslim defendants are judged by non-Muslim judges, there is a 0.1 percentage point increase in the probability of receiving a favorable outcome, such as acquittal. Yet, this result is not consistently significant across all preferred specifications. Contradicting the hypothesis that non-Muslim judges in NDA-stronghold regions would display enhanced bias towards non-Muslim defendants post 2014, on account of the strong Hindu-nationalist ideology, the data shows an inverse relationship. Column (2) indicates that with every one-percentage-point increase in NDA vote share, the likelihood of acquittal for non-Muslim defendants by non-Muslim judges decreases by about 0.14 percentage points. This trend, again, is not consistently significant across the preferred specifications, suggesting the need to interpret these results with some caution.

5.3 Robustness of baseline results

The baseline results, which primarily utilized the acquittal rate as the dependent variable, are complemented by robustness checks involving two secondary specifications. One of the specifications employs an indicator for non-conviction, essentially any outcome other than a conviction. Table 7 presents these results, echoing the baseline findings: there is no significant non-Muslim in-group bias in judicial decisions nor a significant influence of a strong NDA presence on such bias. Given the common issue of judicial delays in India as discussed in subsection 3.1, the second specifica-

tion involves an indicator for whether a decision is reached within six months from the case’s filing date. The results of this analysis, shown in Table 8, align with the previous findings, neither indicating significant non-Muslim in-group bias nor any potential influence of NDA’s Hindu-nationalist sentiment on such bias. Furthermore, I narrowed the focus to ambiguous outcomes, where the disposition of cases doesn’t clearly indicate whether the result was favourable or unfavourable for the defendant, contrasting with unambiguous outcomes. The results, as presented in Table 9, maintain a consistent narrative with no significant deviations from earlier findings.

An essential aspect of this study involves the definition of ‘close elections’, initially set at a 5% threshold. A natural concern regarding this is whether results are sensitive to this definition of close elections. To alleviate this concern, I test the validity of the results at a narrower margin of 3.5%. The findings, detailed in Table 10, confirm the robustness of the results, particularly for cases considering the acquittal rate. This robustness persists in further tests involving alternative win margins for ambiguous outcomes and analysis limited to the post-2014 period. Table 10 and Table A2 show no discernible non-Muslim in-group bias or any significant effect of the NDA’s electoral presence/strength on this bias within the judiciary. Yet, for the years 2014-2018, corresponding to the tenure of the Modi government, Table A3 presents a different narrative. The biases suggested earlier, both non-Muslim in-group and NDA’s electoral strength induced, lose their robustness under the tighter definition of close elections. Thus, while previous analyses suggested possible biases post-2014, stricter criteria for close elections lead to inconclusive evidence of judicial bias towards non-Muslims amidst apprehensions regarding governmental rhetoric and the erosion of institutional autonomy, paralleling findings from [Ash et al. \(2022\)](#)

6 Discussion

The findings of this study, focusing on four Indian states, suggest that the NDA government’s Hindu-nationalist ideology does not significantly influence the judiciary’s decisions in criminal

cases involving non-Muslims. Despite concerns about political interference, the evidence indicates a resilient judicial system, largely maintaining impartiality. However, these findings are not conclusive and warrant further research. Future studies could consider expanding the geographic scope to include additional states, which would help determine whether the observed patterns of judicial impartiality hold more broadly. Despite some evidence of potential bias and political influence, the inconsistency across various model specifications highlights the complexity of judicial behavior and the need for cautious interpretation.

Interestingly, contrary to the hypothesis that the NDA's rise to national power post-2014 would increase bias towards non-Muslims, this study finds that in regions with stronger NDA influence, non-Muslim judges might exhibit reduced in-group bias. This decrease in leniency towards non-Muslim defendants could stem from various factors, including the broader political and social climate indirectly shaping judicial decisions. This trend might be due to judges feeling pressure to appear impartial or to adhere more strictly to legal standards in an environment dominated by a Hindu-majority political party. This shift points towards a judiciary that actively strives to maintain its independence and credibility in India, even in a politically charged environment. This phenomenon aligns with the Indian Supreme Court's efforts to resist government influence in judge appointments through the Collegium system, underscoring a broader commitment to judicial autonomy and minority rights^{25 26}

Collectively, these findings paint a complex picture of the Indian judiciary's role amidst the country's political landscape. This study contributes to the broader discourse on the judiciary's independence in the politically sensitive context of India and underscores the importance of continual monitoring and research in this area.

²⁵<https://blogs.lse.ac.uk/southasia/2023/06/05/the-contest-over-the-collegium-system-in-india/>

²⁶<https://www.livemint.com/Politics/vm03nS2jzQGCMfRI1LmdfJ/Supreme-Court-strikes-down-NJAC-collegium.html>

References

- Agan, Amanda and Sonja Starr**, “Ban the box, criminal records, and racial discrimination: A field experiment,” *The Quarterly Journal of Economics*, 2018, *133* (1), 191–235.
- Ali, Arshad, Shahbaz Aslam, and Munham Shehzad**, “Comparative Framing of Islam and Muslims by Indian Press in Congress (2009-2014) and BJP (2014-2019) Led Era,” *Journal of Asian Development Studies Vol*, 2021, *10* (2).
- Aney, Madhav S, Shubhankar Dam, and Giovanni Ko**, “Jobs for justice (s): Corruption in the supreme court of india,” *The Journal of Law and Economics*, 2021, *64* (3), 479–511.
- Anwar, Shamena, Patrick Bayer, and Randi Hjalmarsson**, “The impact of jury race in criminal trials,” *The Quarterly Journal of Economics*, 2012, *127* (2), 1017–1055.
- Arnold, David, Will Dobbie, and Crystal S Yang**, “Racial bias in bail decisions,” *The Quarterly Journal of Economics*, 2018, *133* (4), 1885–1932.
- , —, and **Peter Hull**, “Measuring racial discrimination in bail decisions,” *American Economic Review*, 2022, *112* (9), 2992–3038.
- Ash, Elliott, Sam Asher, Aditi Bhowmick, Sandeep Bhupatiraju, Daniel L Chen, Tatanya Devi, Christoph Goessmann, Paul Novosad, and Bilal Siddiqi**, “Measuring gender and religious bias in the indian judiciary,” 2022.
- Baum, Lawrence**, *Ideology in the supreme court*, Princeton University Press, 2017.
- Bursztyn, Leonardo, Georgy Egorov, and Stefano Fiorin**, “From extreme to mainstream: The erosion of social norms,” *American economic review*, 2020, *110* (11), 3522–3548.
- Clots-Figueras, Irma**, “Women in politics: Evidence from the Indian States,” *Journal of public Economics*, 2011, *95* (7-8), 664–690.

- Cohen, Alma and Crystal S Yang**, “Judicial politics and sentencing decisions,” *American Economic Journal: Economic Policy*, 2019, 11 (1), 160–191.
- Frandsen, BR, LJ Lefgren, and EC Leslie**, “Judging Judge Fixed Effects (No. w25528),” 2019.
- Goncalves, Felipe and Steven Mello**, “A few bad apples? Racial bias in policing,” *American Economic Review*, 2021, 111 (5), 1406–1441.
- Imbens, Guido and Karthik Kalyanaraman**, “Optimal bandwidth choice for the regression discontinuity estimator,” *The Review of economic studies*, 2012, 79 (3), 933–959.
- Imbens, Guido W and Thomas Lemieux**, “Regression discontinuity designs: A guide to practice,” *Journal of econometrics*, 2008, 142 (2), 615–635.
- Keck, Thomas M**, *Judicial politics in polarized times*, University of Chicago Press, 2020.
- Khaitan, Tarunabh**, “Killing a constitution with a thousand cuts: Executive aggrandizement and party-state fusion in India,” *Law & Ethics of Human Rights*, 2020, 14 (1), 49–95.
- Knepper, Matthew**, “When the shadow is the substance: Judge gender and the outcomes of workplace sex discrimination cases,” *Journal of Labor Economics*, 2018, 36 (3), 623–664.
- Lambais, Guilherme and Henrik Sigstad**, “Judicial subversion: The effects of political power on court outcomes,” *Journal of Public Economics*, 2023, 217, 104788.
- Lee, David S**, “Randomized experiments from non-random selection in US House elections,” *Journal of Econometrics*, 2008, 142 (2), 675–697.
- McCrary, Justin**, “Manipulation of the running variable in the regression discontinuity design: A density test,” *Journal of econometrics*, 2008, 142 (2), 698–714.
- Newman, Benjamin, Jennifer L Merolla, Sono Shah, Danielle Casarez Lemi, Loren Collingwood, and S Karthick Ramakrishnan**, “The Trump effect: An experimental investigation of

- the emboldening effect of racially inflammatory elite communication,” *British Journal of Political Science*, 2021, 51 (3), 1138–1159.
- Poblete-Cazenave, Rubén**, “Do Politicians in Power Receive Special Treatment in Courts? Evidence from India,” *American Journal of Political Science*, 2023.
- Schanzenbach, Max**, “Racial and sex disparities in prison sentences: The effect of district-level judicial demographics,” *The Journal of Legal Studies*, 2005, 34 (1), 57–92.
- Schanzenbach, Max M and Emerson H Tiller**, “Strategic judging under the US sentencing guidelines: Positive political theory and evidence,” *The Journal of Law, Economics, & Organization*, 2007, 23 (1), 24–56.
- Schkade, David, Lisa Ellman, and Andres Sawicki**, “Are Judges Political? An Empirical Investigation of the Federal Judiciary,” 2006.
- Shayo, Moses and Asaf Zussman**, “Judicial ingroup bias in the shadow of terrorism,” *The Quarterly journal of economics*, 2011, 126 (3), 1447–1484.
- Thorat, Sukhadeo and Katherine S Neuman**, *Blocked by caste: Economic discrimination in modern India*, Oxford University Press, 2012.
- Tudor, Maya**, “Why India’s Democracy Is Dying,” *Journal of Democracy*, 2023.
- Varshney, Ashutosh**, “How India’s Ruling Party Erodes Democracy,” *Journal of Democracy*, 2022, 33 (4), 104–118.
- Werleman, CJ**, “Rising violence against muslims in India under modi and BJP rule,” *Insight Turkey*, 2021, 23 (2), 39–50.
- Yadav, Vineeta**, “Why India’s Political Elites Are to Blame,” *Journal of Democracy*, 2023.

Tables

Table 1: Summary Statistics based on Judge Religion

	(1) Total	(2) Muslim Judge	(3) Non-Muslim Judge
Muslim Judge	0.063 (0.002)	-	0.000 (0.000)
Tenure Length	498.253 (3.513)	490.747 (14.619)	500.299 (3.657)
Decision	0.320 (0.003)	0.329 (0.012)	0.321 (0.003)
Acquitted	0.133 (0.002)	0.135 (0.008)	0.133 (0.002)
Convicted	0.058 (0.001)	0.074 (0.007)	0.057 (0.002)
N	13893	789	12792

Note: Coefficients represent means for each variable in the sample, collapsed to the judge level. Standard errors are reported in the parentheses. Tenure is calculated in terms of number of days and Decision implies if the decision was taken within six months from the date of filing. All the case records where judge religion is defined, even if the defendant religion is unknown are considered here.

Table 2: Summary Statistics of Crime and Acquittal, based on Defendant Religion

	(1) Muslim Share of Charge	(2) Muslim Share/ Population Share	(3) Difference b/w Muslim & Non-Muslim Acquittal Rate	(4) t-statistic of the difference	(5) p-value
Murder	0.130	0.915	-0.012	3.878	0.000
Crimes against Women	0.123	0.866	-0.024	3.926	0.000
Property Crime	0.137	0.963	-0.009	3.665	0.000
Marriage Offenses	0.148	1.043	0.022	-1.852	0.064
Petty Theft	0.129	0.906	-0.013	3.398	0.001
Sexual Assault	0.112	0.789	-0.034	3.073	0.002
Trespass	0.124	0.875	-0.015	2.257	0.024
Violent Crimes causing hurt	0.110	0.771	-0.015	4.635	0.000
Violent Theft/Dacoity	0.168	1.181	-0.011	1.717	0.086
Disturbed public safety	0.173	1.222	-0.017	14.116	0.000
Other	0.131	0.920	-0.013	10.873	0.000
Total	0.132	0.931	-0.012	16.470	0.000

Note: Column 1 of this table reports the share of Muslim defendants for each crime category, based on the Indian Penal Code. Column 2 reports the ratio of the Muslim share for each crime to the Muslim population share in India. The Muslim population share is 0.142. Column 3 reports the difference in Muslim and non-Muslim acquittal rates for each crime category. Column 4 & 5 report the t-stat and p-value associated with the difference.

Table 3: Summary Statistics of Electoral Data

Variable	Observations	Mean	Std. Dev.
Share of close elections	39616	0.21	0.20
Share NDA party alliance win	39616	0.44	0.34
Share NDA party alliance close win, 5pc	39616	0.36	0.41
NDA party alliance vote share	39137	32.8	16.0
Non-NDA party alliance vote share	39616	67.4	16.2
Voter turnout	39616	0.65	0.11
Share of SC/ST Win	39616	0.19	0.19
Share of male winners	39616	0.89	0.14
Share of reserved seats	39616	0.25	0.19
Effective No. of parties	39616	3.43	1.09
Total elections	39616	7.29	4.99

Note: This table represents the summary statistics of constituency-level elections.

Table 4: Political Power and Judicial Bias: Baseline Results for Acquittal Rate

	<i>Outcome Variable : Acquittal Rate</i>			
	(1)	(2)	(3)	(4)
<i>judgeNM</i>	-0.0437 (0.047)	-0.0219 (0.045)	-0.0810* (0.046)	-0.0642 (0.045)
<i>judgeNM</i> $\times$ <i>defNM</i>	0.0167 (0.034)	0.0106 (0.033)	0.0283 (0.028)	0.0265 (0.028)
<i>ShND_{Aw}</i>	-0.0511 (0.062)	-0.0424 (0.060)	-0.1406** (0.071)	-0.1173 (0.072)
<i>judgeNM</i> $\times$ <i>defNM</i> $\times$ <i>ShND_{Aw}</i>	-0.0310 (0.050)	-0.0223 (0.049)	-0.0416 (0.042)	-0.0391 (0.041)
Observations	1,175,313	1,059,327	1,175,499	1,059,519
Controls	No	Yes	No	Yes
Fixed Effect	Court-district-month	Court-district-month	Court-district-year	Court-district-year
Specification	IV	IV	IV	IV
First Stage coefficient	0.2535***	0.2656***	0.2552***	0.2455***
First Stage F-stat	29.84	26.18	20.31	18.32

Note: This table presents the baseline results estimating the impact of assignment of Non-Muslim judge on acquittal rates, under the influence NDA party. The unit of observation is the case. The specifications are estimated using an IV specification where the fraction of elections won by NDA party in the district is instrumented by the fraction of close elections won by them in the district. All specifications include the number of close elections contested in the district. First stage regression coefficient and F-stat are added in the bottom of table. The reference group is Muslim judges and Muslim defendants. Charge-section fixed effect have been used across all columns reported. Standard errors in parentheses are clustered at the judge-district level. *** p<0.01, ** p<0.05, * p<0.1

Table 5: Political Power and Judicial Bias: Baseline Results for Acquittal Rate, for unambiguous outcomes

	<i>Outcome Variable : Acquittal Rate</i>			
	(1)	(2)	(3)	(4)
$judgeNM$	-0.1117 (0.083)	-0.0784 (0.079)	-0.1205 (0.108)	-0.0847 (0.108)
$judgeNM \times defNM$	0.1453* (0.076)	0.1269* (0.074)	0.1088 (0.067)	0.1022 (0.064)
$Sh\hat{N}DA_w$	-0.2452* (0.136)	-0.2121* (0.129)	-0.2305 (0.196)	-0.1660 (0.194)
$judgeNM \times defNM \times Sh\hat{N}DA_w$	-0.2723** (0.137)	-0.2471* (0.132)	-0.2102* (0.120)	-0.2015* (0.115)
Observations	206,122	185,163	206,706	185,770
Controls	No	Yes	No	Yes
Fixed Effect	Court-district-month	Court-district-month	Court-district-year	Court-district-year
Specification	IV	IV	IV	IV
First Stage coefficient	0.2570***	0.2865***	0.2752***	0.2736***
First Stage F-stat	24.12	27.79	22.62	20.80

Note: This table is similar to Table 4, but only with unambiguous outcomes as discussed in Section 3.1. *** p<0.01, ** p<0.05, * p<0.1

Table 6: Political Power and Judicial Bias: Baseline Results for Acquittal Rate post 2014

	<i>Outcome Variable : Acquittal Rate</i>			
	(1)	(2)	(3)	(4)
<i>judgeNM</i>	-0.2069* (0.112)	-0.1820* (0.105)	-0.2333** (0.118)	-0.2153* (0.111)
<i>judgeNM</i> $\times$ <i>defNM</i>	0.1308* (0.071)	0.1113* (0.064)	0.1244 (0.076)	0.1045 (0.068)
<i>ShNDA_w</i>	-0.2773** (0.140)	-0.2576* (0.136)	-0.2866* (0.151)	-0.2565* (0.149)
<i>judgeNM</i> $\times$ <i>defNM</i> $\times$ <i>ShNDA_w</i>	-0.1670* (0.090)	-0.1426* (0.081)	-0.1579 (0.096)	-0.1330 (0.086)
Observations	720,062	651,199	720,468	651,609
Controls	No	Yes	No	Yes
Fixed Effect	Court-district-month	Court-district-month	Court-district-year	Court-district-year
Specification	IV	IV	IV	IV
First Stage coefficient	0.2409***	0.2048***	0.2689***	0.2231***
First Stage F-stat	12.82	11.86	11.91	10.05

Note: This table is similar to Table 4, but restricting the analysis to 2014-2018, when the NDA party led by Prime Minister Narendra Modi came to power at the national level. *** p<0.01, ** p<0.05, * p<0.1

Table 7: Political Power and Judicial Bias: Baseline Results for Non-Conviction

	<i>Outcome Variable : Not Convicted</i>			
	(1)	(2)	(3)	(4)
$judgeNM$	0.0044 (0.013)	0.0020 (0.012)	0.0055 (0.014)	0.0026 (0.014)
$judgeNM \times defNM$	0.0040 (0.008)	0.0055 (0.008)	0.0042 (0.008)	0.0040 (0.008)
$Sh\hat{N}DA_w$	-0.0002 (0.021)	-0.0057 (0.021)	0.0538* (0.032)	0.0473 (0.031)
$judgeNM \times defNM \times Sh\hat{N}DA_w$	-0.0095 (0.014)	-0.0128 (0.015)	-0.0107 (0.014)	-0.0108 (0.014)
Observations	2,708,160	2,450,886	2,708,301	2,451,026
Controls	No	Yes	No	Yes
Fixed Effect	Court-district-month	Court-district-month	Court-district-year	Court-district-year
Specification	IV	IV	IV	IV
First stage coefficient	0.2386***	0.2468***	0.2850***	0.2884***
First Stage F-stat	28.89	29.47	29.62	30.12

Note: This table presents the baseline results estimating the impact of assignment of Non-Muslim judge on non-conviction rates, under the influence NDA party . The unit of observation is the case. The specifications are estimated using an IV specification where the fraction of elections won by NDA party in the district is instrumented by the fraction of close elections won by them in the district. The reference group is Muslim judges and Muslim defendants. Charge-section fixed effect have been used across all columns reported. Standard errors in parentheses are clustered at the judge-district level. *** p<0.01, ** p<0.05, * p<0.1

Table 8: Political Power and Judicial Bias: Baseline Results for Decision timings

	<i>Outcome Variable : Decision within six months of filing</i>			
	(1)	(2)	(3)	(4)
$judgeNM$	-0.0133 (0.038)	-0.0129 (0.035)	-0.0206 (0.036)	-0.0192 (0.036)
$judgeNM \times defNM$	0.0235 (0.025)	0.0196 (0.025)	0.0046 (0.022)	0.0046 (0.022)
$Sh\hat{N}DA_w$	0.0693 (0.070)	0.0759 (0.068)	0.0454 (0.079)	0.0578 (0.079)
$judgeNM \times defNM \times Sh\hat{N}DA_w$	-0.0529 (0.053)	-0.0478 (0.053)	-0.0078 (0.044)	-0.0103 (0.045)
Observations	2,250,308	2,035,533	2,250,500	2,035,723
Controls	No	Yes	No	Yes
Fixed Effect	Court-district-month	Court-district-month	Court-district-year	Court-district-year
Specification	IV	IV	IV	IV
First stage coefficient	0.2364***	0.2381***	0.2868***	0.2891***
First Stage F-stat	23.56	23.26	24.51	26.62

This table presents the baseline results estimating the impact of assignment of Non-Muslim judge on decision timings i.e if the decision was taken within six months of filing, under the influence NDA party. The unit of observation is the case. The specifications are estimated using an IV specification where the fraction of elections won by NDA party in the district is instrumented by the fraction of close elections won by them in the district. The reference group is Muslim judges and Muslim defendants. Charge-section fixed effect have been used across all columns reported. Standard errors in parentheses are clustered at the judge-district level. *** p<0.01, ** p<0.05, * p<0.1

Table 9: Political Power and Judicial Bias: Baseline Results for whether the disposition is ambiguous

	<i>Outcome Variable : Ambiguous Outcomes</i>			
	(1)	(2)	(3)	(4)
<i>judgeNM</i>				
	0.0524	0.0264	0.0344	0.0152
	(0.0378)	(0.037)	(0.037)	(0.037)
<i>judgeNM</i> $\times$ <i>defNM</i>	-0.000385	0.0024	-0.0098	-0.0093
	(0.0239)	(0.024)	(0.019)	(0.019)
<i>ShNDA_w</i>	0.0189	0.0062	-0.0618	-0.0845
	(0.0554)	(0.055)	(0.072)	(0.072)
<i>judgeNM</i> $\times$ <i>defNM</i> $\times$ <i>ShNDA_w</i>	0.000929	-0.0039	0.0094	0.0074
	(0.0396)	(0.039)	(0.032)	(0.032)
Observations	2,708,160	2,450,886	2,708,301	2,451,026
Controls	No	Yes	No	Yes
Fixed Effect	Court-district-month	Court-district-month	Court-district-year	Court-district-year
Specification	IV	IV	IV	IV
First stage coefficient	0.2386***	0.2468***	0.2851***	0.2884***
First Stage F-stat	28.89	29.47	29.62	30.12

Note: This table presents the baseline results estimating the impact of assignment of Non-Muslim judge on whether the disposition is ambiguous, in contrast to unambiguous outcomes, under the influence NDA party. The unit of observation is the case. The specifications are estimated using an IV specification where the fraction of elections won by NDA party in the district is instrumented by the fraction of close elections won by them in the district. The reference group is Muslim judges and Muslim defendants. Charge-section fixed effect have been used across all columns reported. Standard errors in parentheses are clustered at the judge-district level. *** p<0.01, ** p<0.05, * p<0.1

Table 10: Political Power and Judicial Bias: Acquittal Rate with an alternate definition of close election

	<i>Outcome Variable : Acquittal Rate</i>			
	(1)	(2)	(3)	(4)
<i>judgeNM</i>	-0.0763 (0.058)	-0.0616 (0.055)	-0.0945 (0.058)	-0.0814 (0.055)
<i>judgeNM</i> $\times$ <i>defNM</i>	0.0240 (0.044)	0.0178 (0.042)	0.0302 (0.037)	0.0308 (0.035)
<i>ShNDA_w</i>	-0.0765 (0.081)	-0.0853 (0.078)	-0.1907* (0.112)	-0.1792 (0.115)
<i>judgeNM</i> $\times$ <i>defNM</i> $\times$ <i>ShNDA_w</i>	-0.0413 (0.065)	-0.0328 (0.062)	-0.0436 (0.056)	-0.0449 (0.053)
Observations	1,175,313	1,059,327	1,175,499	1,059,519
Controls	No	Yes	No	Yes
Fixed Effect	Court-district-month	Court-district-month	Court-district-year	Court-district-year
Specification	IV	IV	IV	IV
First stage coefficient	0.2945***	0.2311***	0.2397***	0.2340***
First Stage F-stat	25.50	22.48	26.09	25.27

Note: This table is similar to Table 4, with a tighter win margin of 3.5 percent for close elections. *** p<0.01, ** p<0.05, * p<0.1

Figures

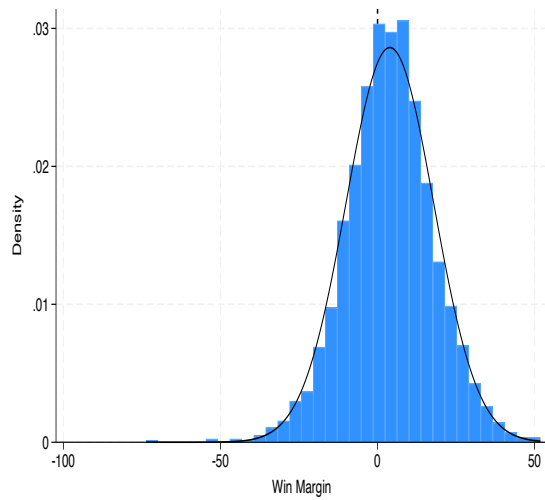


Figure 1: Histogram

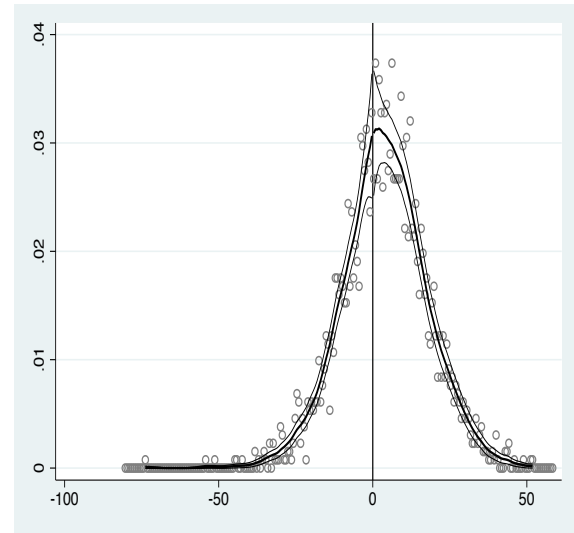
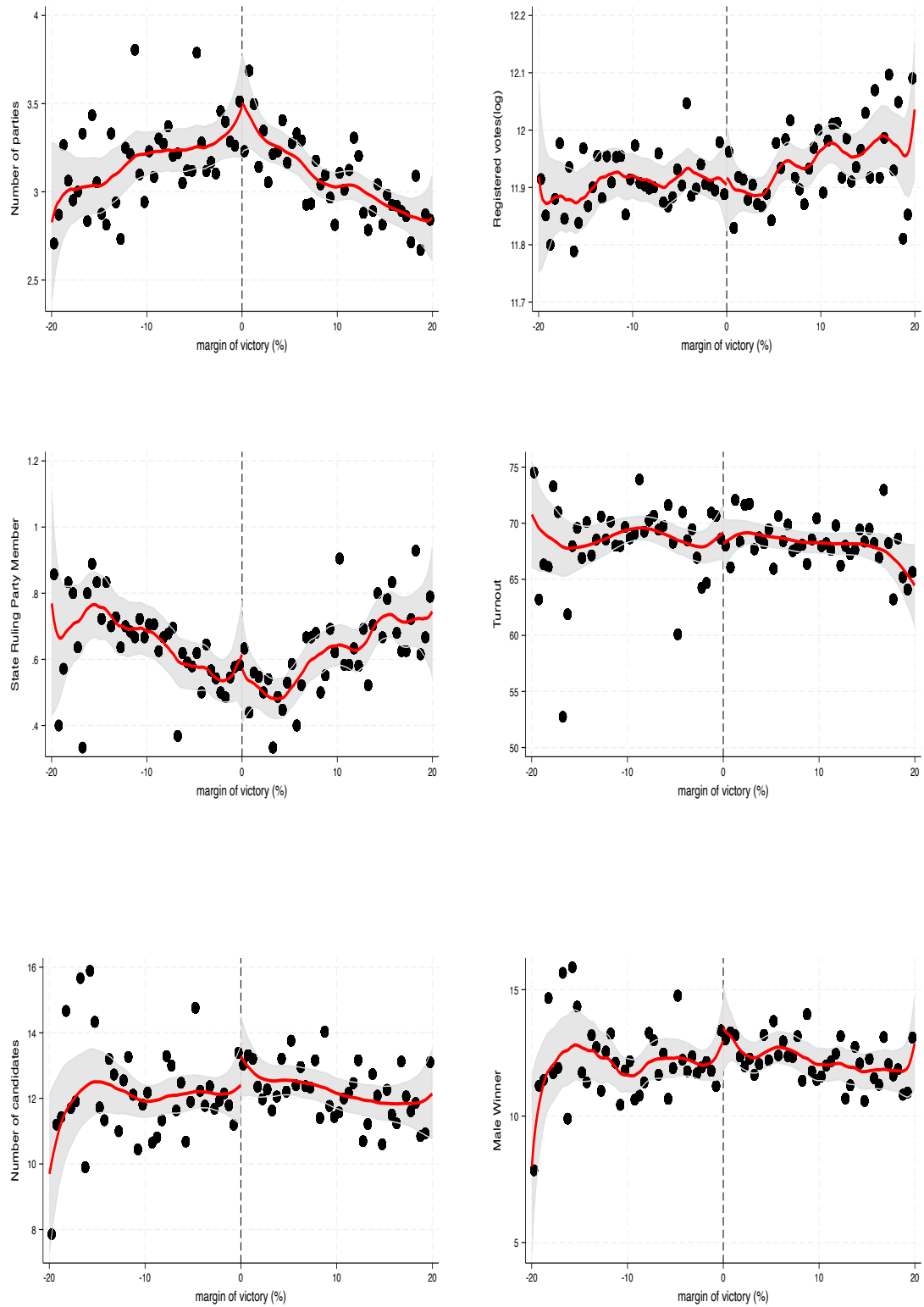
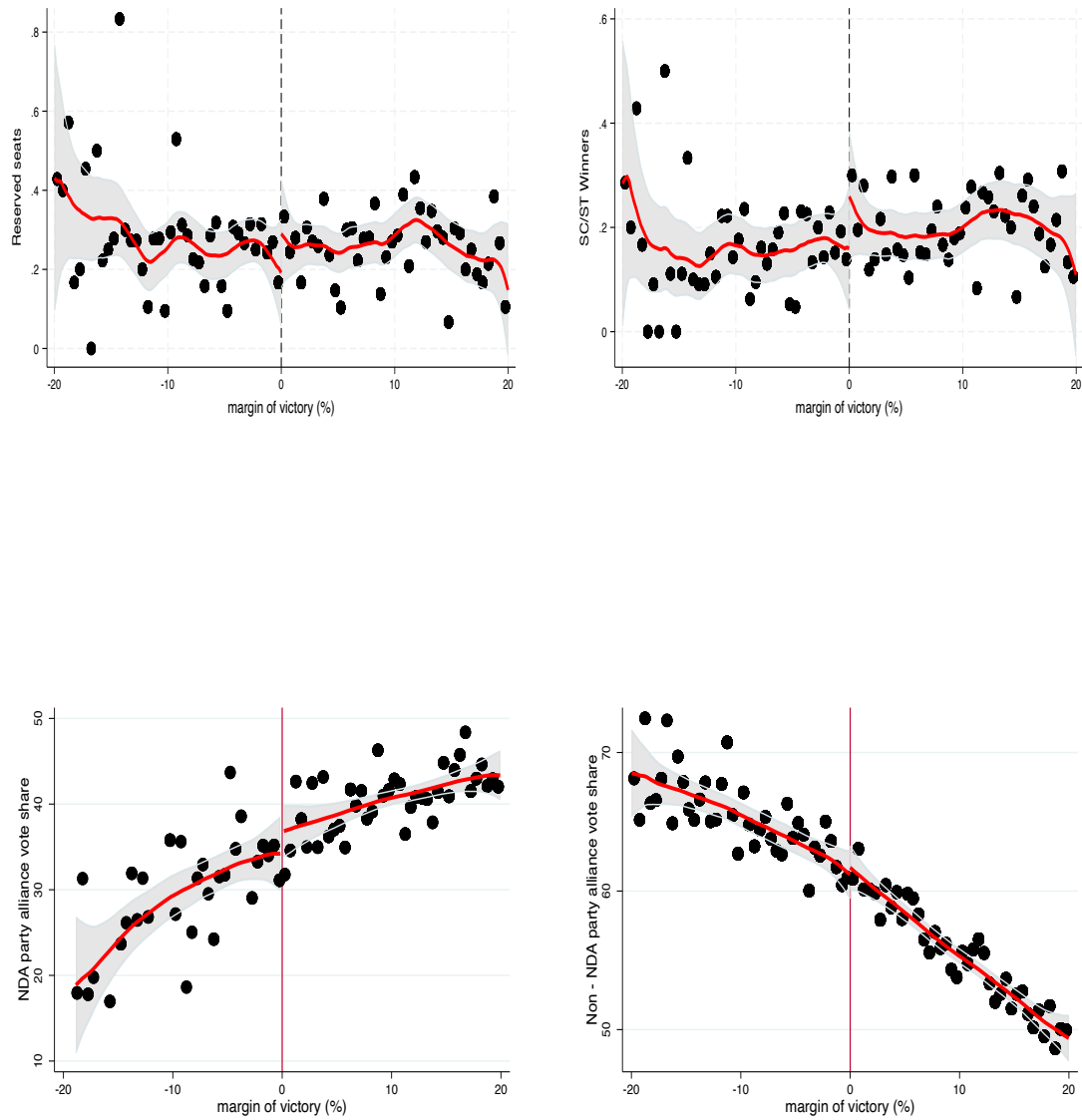


Figure 2: McCrory Test

Note: Continuity of the Victory Margin between NDA and non-NDA parties. The forcing variable is the margin of victory of a NDA party. Negative values are the difference in the vote shares of a NDA party runners-up and a non-NDA party winner. Positive values are opposite. The line segments indicate the test for a discontinuity in the NDA party victory margin at the threshold of 0, as proposed by McCrory (2008). The McCrory point estimate for the discontinuity at zero is 0.02 (se= 0.09).

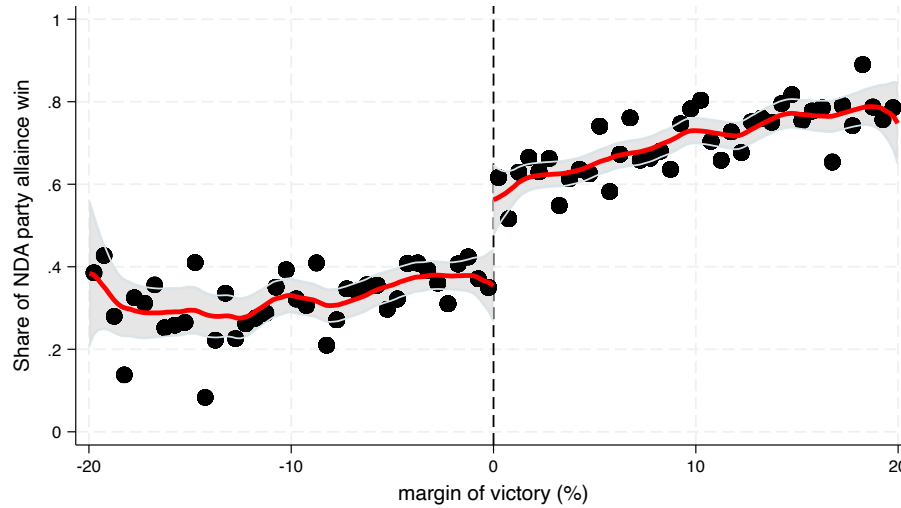
Figure 3: Balance Check of covariates across NDA party alliance victory margin





Note: Balance Test for Constituency Characteristics. The following covariates are checked: NDA party vote share, total registered voters, voter turnout, constituencies reserved for SC/ST candidates, number of contestants, male winners in constituencies, turnout, winners from SC/ST group, non-NDA party vote share and whether a constituency was aligned with the ruling party in the state. The forcing variable is the margin of victory of a NDA party. The dots in the scatter plot depict the averages over each successive interval of 0.5 percent of margin of victory. The curves are local linear regressions fit separately for positive and negative margins of victory using a triangular kernel and an optimal bandwidth calculator as suggested in Imbens and Kalyanaraman (2012). The confidence intervals are the 95 percent confidence intervals.

Figure 4: NDA party alliance Win Margin and Share of Elections won by them in the District



Note: The above figure presents a graphical representation of the first stage of empirical specification. The forcing variable is the margin of victory of a NDA party. Negative values are the difference in the vote shares of a NDA party runners-up and a non-NDA party winner. Positive values are the opposite. The dots in the scatter plot depict the unconditional mean of the fraction of close elections won by NDA party in the district over each successive interval of 0.5 percent of margin of victory. The curves are local linear regressions fit separately for positive and negative margins of victory using a triangular kernel and an optimal bandwidth calculator as suggested in Imbens and Kalyanaraman (2012). The confidence intervals are the 95 percent confidence intervals for the local linear fit on either side of the cutoff.

7 Appendix

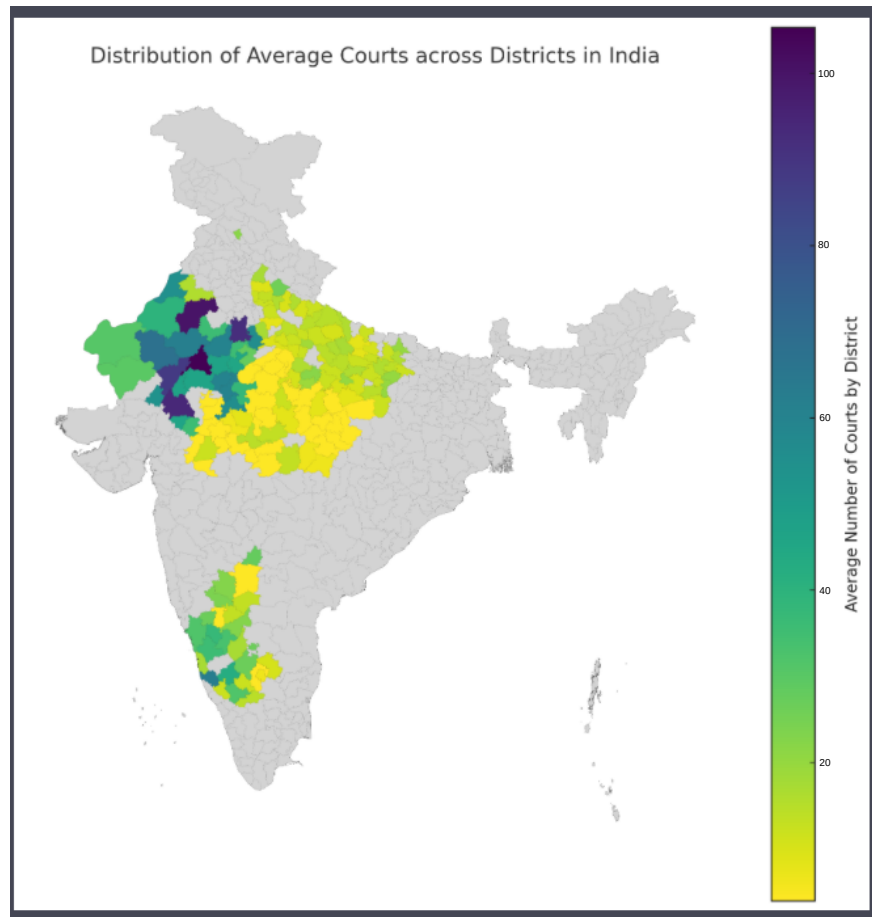
7.1 Data Extraction Process for District Names

For the purpose of enhancing the district-level dataset used in my research, I employed a Python-based web-extraction technique to systematically extract district names from Wikipedia. This process was crucial for filling in missing data points and ensuring the completeness of my dataset. The following is a description of the data extraction process:

The script was designed to automatically query Wikipedia pages for each constituency name in my data set, which was missing the district name. Using the Python libraries `pandas`, `requests`, and `BeautifulSoup`, the script sequentially accessed potential Wikipedia URLs constructed from the constituency names. The script's logic followed a hierarchical URL query sequence, beginning with a search for a page named after the constituency's assembly segment, followed by the constituency name itself, and then variations including the terms 'District' and 'Town'. This sequence of URL patterns was intended to account for the different ways a constituency's district information might be listed on Wikipedia. If the initial URL resulted in a 404 HTTP error, indicating that the page did not exist, the script would proceed to the next URL pattern. Upon successfully locating a valid Wikipedia page, the script utilized `BeautifulSoup` to parse the HTML content and locate the 'District' field within the page's infobox. The district name was then extracted and stored. If the 'District' field was not found or if all URL patterns resulted in a 404 error, the constituency was marked as 'Not Found', and the search for that entry concluded.

The extracted district names, alongside their corresponding URLs, were stored in a Python dictionary and then merged with the original dataframe. This merged dataframe, now containing both the constituency names and the newly extracted district names, was used to merge with the rest of the data (where constituencies already had the district names).

Figure A1: Distribution of courts across districts



Note: This figure shows the geographical distribution of average number of trial courts across the four states. The unit of observation is at the district level.

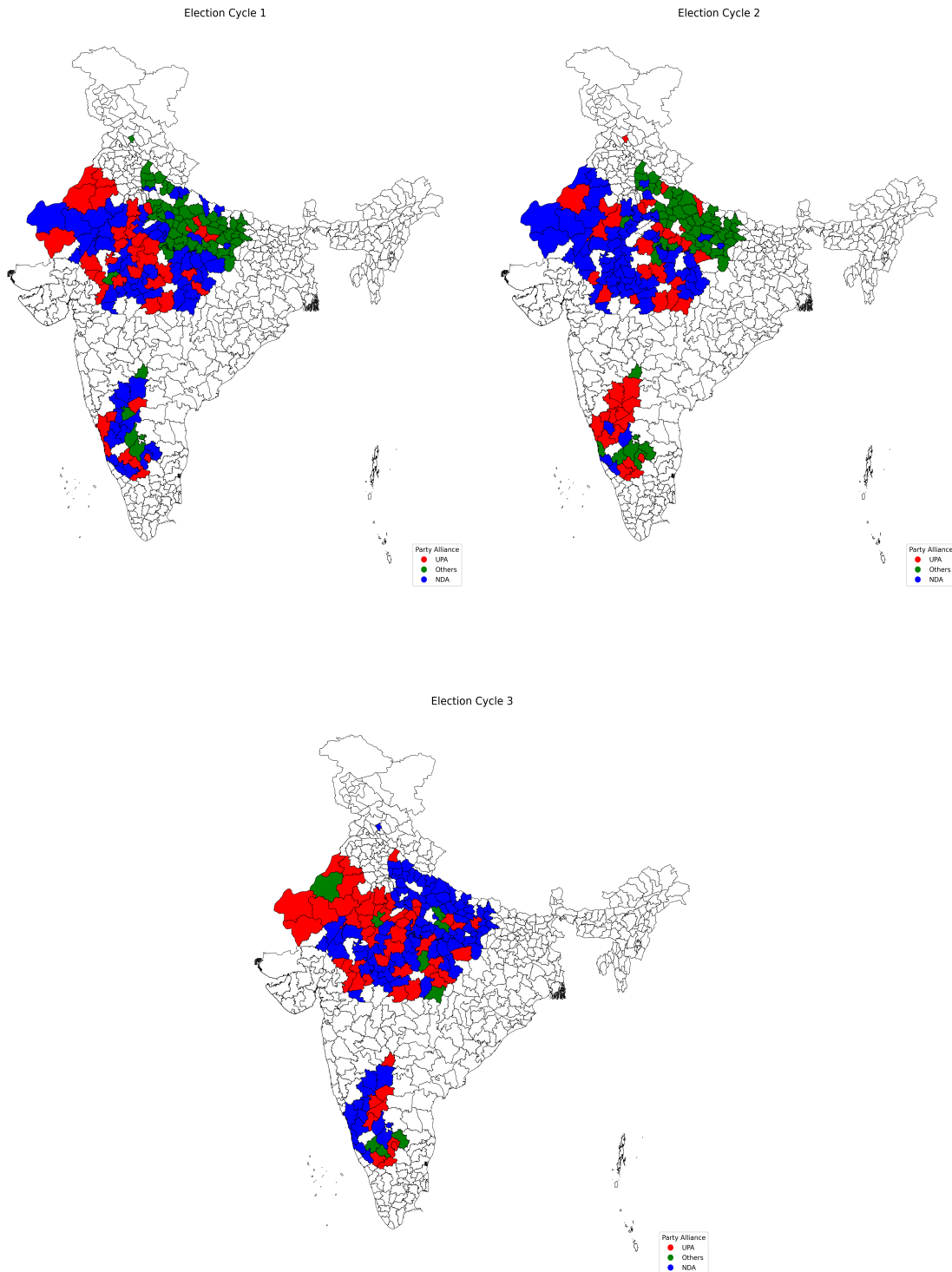
Figure A2: Outcome Variables and Dispositions

Disposition Name	Mapped Outcome(s)		
	Acquitted	Convicted	Decision
258 crpc [acquitted]	X		X
Acquitted	X		X
Allowed	X		X
Committed			X
Compromise			X
Convicted		X	X
Decided			X
Dismissed			X
Disposed			X
Fine			X
Judgement			X
Other			X
Plead guilty		X	X
Prison		X	X
Referred to lok adalat			X
Reject			X
Remanded			X
Transferred			X
Withdrawn			X
Missing			

Notes: This table illustrates the classification of the raw dispositions into our three outcome variables. In the table, no entry corresponds to the default value 0, and X denotes that the corresponding outcome value is set to 1. If a case has a disposition at all, the indicator variable *Decision* equals 1, and 0 otherwise. Conditional on having a disposition, if the disposition is clearly acquitted, the outcome variable *Acquitted* takes the value 1, and 0 otherwise. The outcome variable for *Conviction* has been coded analogously.

Source: (Ash et al., 2022)

Figure A3: Power shifts across states



Note: This figure shows district-level electoral party win in the three electoral cycles between 2007-2019 for Uttar Pradesh, Karnataka, Rajasthan and Madhya Pradesh by categorising them as NDA, UPA and Others.

Table A1: Summary Statistics of Crime and Conviction, based on Defendant Religion

	(1)	(2)	(3)	(4)	(5)
	Muslim Share of Charge	Muslim Share/ Population Share	Difference b/w Muslim & Non-Muslim Conviction Rate	t-statistic of the difference	p-value
Murder	0.130	0.915	-0.003	1.780	0.075
Crimes against Women	0.123	0.866	-0.001	0.695	0.487
Property Crime	0.137	0.963	-0.002	1.725	0.084
Marriage Offenses	0.148	1.043	-0.001	0.260	0.795
Petty Theft	0.129	0.906	0.003	-1.161	0.246
Sexual Assault	0.112	0.789	-0.006	1.428	0.153
Trespass	0.124	0.875	-0.008	2.732	0.006
Violent Crimes causing hurt	0.110	0.771	0.036	-9.320	0.000
Violent Theft/Dacoity	0.168	1.181	-0.002	0.685	0.493
Disturbed public safety	0.173	1.222	-0.036	17.036	0.000
Other	0.131	0.920	-0.011	9.733	0.000
Total	0.132	0.931	0.000	-0.228	0.820

Note: Analogous to Table 2, column 1 of this table reports the share of Muslim defendants for each crime category, based on the Indian Penal Code. Column 2 reports the ratio of the Muslim share for each crime to the Muslim population share in India. The Muslim population share is 0.142. Column 3 reports the difference in Muslim and non-Muslim conviction rates for each crime category. Column 4 & 5 report the t-stat and p-value associated with the difference.

Table A2: Political Power and Judicial Bias: Baseline Results for whether the disposition is ambiguous, with an alternate definition of close election

	<i>Outcome Variable : Ambiguous Outcomes</i>			
	(1)	(2)	(3)	(4)
<i>judgeNM</i>				
	0.0340	0.0147	0.0459	0.0257
	(0.0459)	(0.044)	(0.048)	(0.047)
<i>judgeNM</i> $\times$ <i>defNM</i>				
	0.0139	0.0186	0.0063	0.0057
	(0.0304)	(0.029)	(0.025)	(0.025)
<i>ShND_{Aw}</i>				
	-0.0493	-0.0492	-0.2975***	-0.3325***
	(0.0740)	(0.073)	(0.109)	(0.111)
<i>judgeNM</i> $\times$ <i>defNM</i> $\times$ <i>ShND_{Aw}</i>				
	-0.0221	-0.0298	-0.0206	-0.0197
	(0.0525)	(0.051)	(0.043)	(0.044)
Observations	2,708,160	2,450,886	2,708,301	2,451,026
Controls	No	Yes	No	Yes
Fixed Effect	Court-district-month	Court-district-month	Court-district-year	Court-district-year
Specification	IV	IV	IV	IV
First stage coefficient	0.2477***	0.2590***	0.2878***	0.2890***
First Stage F-stat	26.22	25.17	23.91	23.97

Note: This table is similar to Table 5, with a tighter win margin of 3.5 percent for close elections. *** p<0.01, ** p<0.05, * p<0.1

Table A3: Political Power and Judicial Bias: Baseline Results for Acquittal Rate post 2014, with an alternate definition of close election

	<i>Outcome Variable : Acquittal Rate</i>			
	(1)	(2)	(3)	(4)
$judgeNM$	-0.3068* (0.179)	-0.2913* (0.166)	-0.2947 (0.180)	-0.2851* (0.169)
$judgeNM \times defNM$	0.1657 (0.126)	0.1439 (0.110)	0.1410 (0.120)	0.1205 (0.105)
$Sh\hat{N}DA_w$	-0.3113 (0.239)	-0.3156 (0.225)	-0.3826 (0.238)	-0.4110* (0.228)
$judgeNM \times defNM \times Sh\hat{N}DA_w$	-0.2099 (0.162)	-0.1821 (0.140)	-0.1774 (0.153)	-0.1513 (0.134)
Observations	720,062	651,199	720,468	651,609
Controls	No	Yes	No	Yes
Fixed Effect	Court-district-month	Court-district-month	Court-district-year	Court-district-year
Specification	IV	IV	IV	IV
First stage coefficient	0.2477***	0.2389***	0.2747***	0.2631***
First Stage F-stat	23.89	24.17	24.03	23.87

Note: This table is similar to Table 6, with a tighter win margin of 3.5 percent for close elections. *** p<0.01, ** p<0.05, * p<0.1